

25NWCV03297 25NWCV03297

County: los-angeles

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Case Number: 25NWCV03297 Hearing Date: September 4, 2026 Dept: P

LEONEL ESCAMILLA v. FRESH
PACKING, CORPORATION, ET AL.

CASE NO.: 25NWCV03297

HEARING: 09/04/2026 @
9:30 AM

#15

TENTATIVE ORDER

I.

Proposed Intervenor Liberty Mutual

Insurance Company's motion for leave to intervene is GRANTED.

II.

Liberty Mutual Insurance Company is

ORDERED to file and serve its complaint-in-intervention attached to its moving papers within 5 days of this Order

Moving party to give notice.

Proposed Intervenor Liberty Mutual Insurance Company (Proposed Intervenor) moves for leave to intervene in this action.

Background

On September 17, 2025, Plaintiff Leonel Escamilla (Plaintiff) filed this personal injury action against Defendants Fresh Packing, Corporation, Jose Ricardo Quiroz Smith, and Does 1 through 10. This action arises out of injuries Plaintiff sustained from a motor vehicle collision on August 2, 2024, when a vehicle owned or operated by Defendants and driven by Smith collided into the rear of a trailer attached to a 2021 Freightliner operated by Plaintiff. (Complaint, ¶ 8.) The complaint asserts a single cause of action for negligence.

Legal Standard

An intervention takes place when a nonparty becomes a party to an action by “[j]oining a plaintiff in claiming what is sought by the complaint,” “[u]niting with a defendant in resisting the claims of a plaintiff,” or “[d]emanding anything adverse to both a plaintiff and a defendant.” (Code Civ. Proc., § 387, subd. (b)(1)-(3).) A nonparty petitioning for leave to intervene must include a copy of the proposed complaint or answer in intervention and state the grounds for the intervention. (Code Civ. Proc., § 387, subd. (c).)

The Court shall permit an intervention if “[a] provision of law confers an unconditional right to intervene” or “[t]he person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.” (Code Civ. Proc., § 387, subd. (d)(1)(A)-(B).)

Alternatively, the Court may “permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” (Code Civ. Proc., § 387, subd. (d)(2).)

Discussion

Proposed Intervenor moves to intervene in this action on the grounds that Plaintiff's complaint derives from injuries Plaintiff sustained while employed with United Postal Service (Employer) which Proposed Intervenor insured at the time of injury by issuing a workers' compensation policy to Employer.

This motion is unopposed.

Proposed Intervenor argues that it has paid Plaintiff workers' compensation benefits in the amount of \$152,144.08 and is thus entitled to reimbursement under Labor Code section 3852. Proposed Intervenor notes that it filed a Notice of Lien in this action on July 15, 2026. (Mot., Exh. 2.)

Labor Code sections 3852 and 3853 provide that an employer against whom a claim for workers' compensation damages was made may join in an action against a third party arising out of the incident for which the workers' compensation payment was made. (Lab. Code, §§ 3852, 3853.) "[Labor Code] [s]ection 3853 states that when an action is brought against a third party by either the employer or the employee, 'the other may, at any time before trial on the facts, join as party plaintiff.'" (Jordan v. Superior Court (1981) 116 Cal.App.3d 202, 206 [quoting Lab. Code, § 3853].) An employer includes the employer's insurer. (Lab. Code, § 3850, subd. (b).)

As the workers' compensation insurer for Plaintiff's Employer, Proposed Intervenor establishes a statutory right to intervene.

Proposed Intervenor's motion for leave to file a complaint-in-intervention is GRANTED.

Proposed Intervenor is ORDERED to file and serve its complaint-in-intervention attached to its moving papers within five (5) days of this Order.